

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, May 17, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27350 against Sergeant Manuel Martinez, Tax Registry No. 955136. This case was conferenced on May 14, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of a Command Discipline Schedule A and the total forfeiture of five (5) vacation days, after Sergeant Manuel Martinez accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated October 26, 2022. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

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Chief Prosecutor
New York City Civilian Complaint Review Board

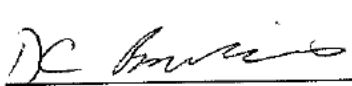


DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27350
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MARTINEZ	FIRST MANUEL	M.I. A	COMMAND 068 PRECINCT
SHIELD NO. 3482	TAX REGISTRY NO. 955136	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Manuel MARTINEZ, on or about July 5, 2021, at approximately 0055, while assigned to 068PCT and on duty, in the vicinity of 3rd Avenue and Bay Ridge Parkway, Kings County, wrongfully used force, in that he pushed § 87(2)(b) to the ground, without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER

6/13/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER

7/9/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, June 13, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-27350 against Sergeant Manuel Martinez, Tax No. 955136, with the recommendation that the Charges and Specifications against Sergeant Martinez be dismissed and that Sergeant Martinez receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

